

**SUBSTITUTE FOR
SENATE BILL NO. 504**

A bill to amend 1976 PA 399, entitled
"Safe drinking water act,"
by amending section 5 (MCL 325.1005), as amended by 1998 PA 56, and
by adding section 6a.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 5. (1) The department shall promulgate and enforce rules
2 to carry out this act ~~pursuant to~~ **in accordance with** the
3 administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to
4 24.328. The rules, at a minimum, ~~shall~~ **must** include the following:

5 (a) Requirements for the submission of reports, plans, and
6 specifications for the design and construction of **all or a part of**
7 a waterworks system, ~~or a part thereof,~~ and a plan for operating
8 and maintaining all or a part of ~~the~~ **a** waterworks system, including



1 the protection of water quality within the distribution system as
 2 necessary to protect the public health.

3 (b) State drinking water standards and associated monitoring
 4 requirements, the attainment and maintenance of which are necessary
 5 to protect the public health.

6 (c) The classification of **all or a part of a** waterworks
 7 ~~systems or portions thereof,~~ **system**, the examination for
 8 certification of the operators of ~~these waterworks~~ systems
 9 including shift operators of water treatment systems, and for the
 10 issuance, suspension, and revocation of certificates.

11 (d) Criteria for capacity assessments performed by the
 12 department at community supplies, nontransient noncommunity water
 13 supplies, or a public water supply applying to the department for
 14 assistance under part 54 of the natural resources and environmental
 15 protection act, 1994 PA 451, MCL 324.5401 to 324.5418.

16 (e) Requirements for provision of facilities by public water
 17 supplies that will ~~assure~~ **ensure** an adequate and reliable supply of
 18 drinking water on a continuous basis.

19 **(f) Requirements for the establishment and administration of**
 20 **the microplastics program created in section 6a.**

21 (2) Rules governing public water supplies promulgated under
 22 former 1913 PA 98 ~~, and which~~ **that** were in effect on January 4,
 23 1977 are continued in accordance with section 31 of the
 24 administrative procedures act of 1969, 1969 PA 306, MCL 24.231, and
 25 may be amended or rescinded by the director under this act.

26 (3) No rule promulgated may require the addition of any
 27 substance for preventive health care purposes unrelated to
 28 contamination of drinking water.

29 **Sec. 6a. (1) Beginning July 1, 2027, and continuing until July**



1 1, 2030, the department shall establish and administer a
2 microplastics program to assess and characterize the presence of
3 microplastics in public water supplies. As part of the
4 microplastics program, the department shall monitor and test select
5 public water supplies and other water sources. The department shall
6 coordinate with universities, suppliers of water, nonprofit
7 organizations, professional societies, and governmental agencies to
8 develop accepted sampling strategies, testing schedules, analytical
9 methods, definitions, classifications, and laboratory capacity for
10 assessing microplastics in drinking water and other water sources.
11 The microplastics program is intended to be a sampling program that
12 provides an exploratory assessment of the prevalence,
13 characteristics, origins, and potential mitigation of microplastics
14 in drinking water and other water sources. The microplastics
15 program is not intended to be a universal monitoring and regulatory
16 program. Under the microplastics program, the department shall
17 consider all of the following:

18 (a) Shoreline surface water drinking water sources from the
19 Great Lakes.

20 (b) Major tributaries that support public water supplies.

21 (c) Inland surface water lakes that provide drinking water.

22 (d) Direct use of groundwater for drinking water within and
23 near agricultural operations.

24 (e) Use of groundwater or drinking water within 1 mile of a
25 landfill operation.

26 (f) The size of the public water supply.

27 (g) Impacts on environmental justice.

28 (h) Sample collection and analysis.

29 (2) The department shall coordinate with the department of



1 health and human services to communicate with the public and to
2 provide guidance to suppliers of water to inform the public about
3 all of the following:

4 (a) Current scientific knowledge regarding microplastics and
5 the potential risks of microplastics.

6 (b) Uncertainties and gaps in scientific knowledge.

7 (c) Methods for reducing exposure to microplastics.

8 (d) Other information about the presence of microplastics in
9 specific public water supplies.

10 (3) Not later than July 1, 2031, the department shall prepare
11 and submit a report to the standing committees and the
12 appropriations subcommittees of the senate and house of
13 representatives with primary responsibility for issues under the
14 jurisdiction of the department and make the report available on the
15 department's website. The report must include the following:

16 (a) A summary of findings, including, but not limited to, all
17 of the following:

18 (i) Reports or technical memoranda that provide a summary of
19 any test completed under subsection (1), including, but not limited
20 to, the following information:

21 (A) Drinking water source, location, and description.

22 (B) Sampling date.

23 (C) Testing methodology.

24 (D) Microplastic shape, if available.

25 (E) Potential microplastic sources.

26 (F) Polymer type, if available.

27 (ii) The quantities of microplastics in public water supplies,
28 including the quantities in the water source that supplies the
29 public water supply.



1 (b) Recommendations for next steps for addressing the effects
2 and presence of microplastics in public water supplies, including,
3 but not limited to, the following:

4 (i) The toxicity limit of microplastics based on best
5 available, peer-reviewed research or toxicity studies and findings
6 of the United States Environmental Protection Agency.

7 (ii) A preliminary risk assessment.

8 (iii) An overview of findings and critical issues.

9 (iv) Recommendations for continued and expanded monitoring and
10 analysis and public protection.

11 (4) Not later than July 1, 2031, the department shall provide
12 to suppliers, guidance on methods for communicating to the public
13 the results of the program and other relevant information regarding
14 microplastics.

15 (5) As used in this section, "microplastics" means solid
16 polymeric materials that may contain chemical additives or other
17 substances and that are particles less than 5,000 micrometers in
18 all 3 dimensions. Microplastics do not include polymers that are
19 derived in nature and that have not been chemically modified,
20 except by hydrolysis.